

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

MOTION TO COMPEL

Pursuant to the Federal Maritime Commission’s (“FMC”) Rules of Practice and Procedure (“FMC Rules”) 46 C.F.R. §§ 69, 141, 145, 146, and 150, Complainant Samsung Electronics America, Inc. (“SEA”) by and through its undersigned attorneys, hereby files this Motion to Compel (“Motion”) for Respondent HMM Co., Ltd. (“HMM”) to respond to certain SEA interrogatories (“Rogs”) and requests for production (“RFPs”) (collectively, “Discovery Requests”).

I. PRELIMINARY STATEMENT

Discovery into HMM’s practices related to charging SEA demurrage, detention, per diem, and similar charges (“D&D”) commenced in this case on May 20, 2025. From as early as August 2025,¹ and up to and including April 10, 2026,² SEA has raised and attempted to redress myriad and substantial deficiencies in HMM’s responses to SEA’s Discovery Requests.³ The deficiencies in HMM’s discovery responses are material and the existence of responsive information that HMM has failed to produce is well-substantiated.⁴ Multiple HMM witnesses—from operational employees to high-level managers—have unequivocally validated the existence, custodianship, content, in some cases specific storage locations, and routine circulation and business use of precise reports, contracts, and other relevant records that HMM continues to fail to produce.

Key testimony has also revealed HMM never identified or produced (and may never have searched for) responsive documents or communications from the critical departments and teams directly responsible for D&D policies and decisions based at HMM’s headquarters in Korea. The Container Service Supporting Team was directly responsible for D&D policy development, tariff

¹ See Exhibit A-2.

² See Exhibit A-13.

³ See Exhibit A-1 through A-13 (listing and appending the discovery correspondences exchanged).

⁴ The specific Rogs and RFPs at issue here, and HMM’s responses, are set out in Exhibit B hereto.

rule-setting, charge tracking, revenue targeting, and reporting to senior management; yet *no documents were produced* from any custodians in those key departments. SEA only found out about the existence of these critical departments and personnel through depositions.

The deficiencies identified by SEA reflect a pattern of HMM advancing inappropriate relevance objections relating to D&D financial-related information, combined with selective omission of custodians and documents from key D&D departments. Witnesses testified that U.S. D&D revenue and collection targets were set by Korea HQ throughout the pandemic, that D&D was viewed as an important source of additional revenue, that HMM sought to increase D&D rates in order to increase revenue, and that D&D revenue and collections received significant attention and reporting to and from Korea HQ for the entire Relevant Period, yet the document production is virtually devoid of such documents involving key departments and employees/executives.

SEA has already taken twelve depositions in this proceeding, and each deposition has peeled back more layers of information that HMM has not produced. SEA has been materially prejudiced by HMM's discovery failures and that prejudice will only continue and compound in the remaining discovery window without intervention by the Presiding Officer. We have tried to address these issues cooperatively with HMM counsel, but without success. Consistent with the Presiding Officer's directive to bring motions to compel as soon as practicable,⁵ SEA now moves to compel production of the documents identified herein.

II. ARGUMENT

A. Legal Standard.

FMC Rules permit discovery "regarding any nonprivileged matter that is relevant to any

⁵ Second Amended Scheduling Order, Dkt. 40 (Nov. 21, 2025) at 1 (counseling the parties to bring any unresolved issues to the Presiding Officer's attention promptly).

party's claim or defense." 46 C.F.R. § 502.141(e)(1). FMC Rule 150 authorizes the Presiding Officer to compel the production of information when a party fails to respond to a party's discovery requests, has provided insufficient or inadequate responses, or hides behind spurious objections. 46 C.F.R. § 502.150.

"As to discovery, the Shipping Act directs the FMC to follow the Federal Rules of Civil Procedure to the extent possible."⁶ Consistent with the FMC's regulations, the Federal Rules permit parties to "obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense."⁷ The Federal Rules embody "a liberal discovery standard," and "the term relevance at the discovery stage is a broadly construed term and is given very liberal treatment."⁸ The presiding officer in an FMC proceeding "may order discovery of any matter relevant to the subject matter involved in the action." 46 C.F.R. § 502.141(e)(1).

B. HMM's Discovery Deficiencies.

1. Failure to Produce D&D Financials, Tracking, Revenue and Collections.

SEA's Rogs 7, 15 and 16, and RFPs 11, 23 and 24 request HMM financial information related to D&D revenue that is central to this case.⁹ During the January 29, 2026 discovery conference, the Presiding Officer indicated that D&D financial information related to SEA's claims is relevant. HMM's answers to these specific Discovery Requests were non-responsive with boilerplate objections, but HMM represented that it would produce non-privileged responsive

⁶ *Marine Transport Logistics, Inc. v. CMA CGM, S.A.*, Dkt. No. 22-23, 2023 WL 7328874, at *5 (FMC Oct. 30, 2023); *see also Fed. Maritime Comm'n v. South Carolina State Ports Auth.*, 535 U.S. 743, 758 (2002) ("[D]iscovery in FMC adjudications largely mirrors discovery in federal civil litigation.").

⁷ *See Standley v. Edmonds-Leach*, 783 F.3d 1276, 1282 n.1 (D.C. Cir. 2015).

⁸ *Thomas v. Moreland*, Civil Action No. 18-800 (TJK), 2020 WL 13695157, at *1 (D.D.C. 2020) (quoting *Tequila Centinela, S.A. de C.V. v. Bacardi & Co.*, 242 F.R.D. 1, 6 (D.D.C. 2007)).

⁹ *See* Exhibit B at 4-6 (SEA Rogs 7, 15 and 16, and RFPs 11, 23 and 24 and HMM's responses).

documents in response to Rogs 7, 15, and 16,¹⁰ and during the conference HMM stated that it would provide additional responsive discovery. To date however, the sole additional production made by HMM concerning D&D revenue was a supplemental response to SEA’s Rog No. 7, made on March 23, 2026.¹¹ That supplemental response was a half-page table of plainly unresponsive information.¹² Rather than providing the information requested, HMM provided a single chart showing HMM’s *global* total D&D revenue collected by quarter between Q1 2020 and Q2 2023. HMM’s “supplemental” response provides only the most rudimentary top-line revenue figures—it does not provide the revenue and costs relating to D&D in the U.S., which is at issue in this case. Deposition testimony confirms that HMM is in possession of the granular financial information specifically requested.¹³ This is not a good-faith effort to supplement discovery; it is a token gesture designed to create the appearance of compliance while continuing to withhold information SEA needs to prosecute its claims.

The testimony of key HMM executives laid bare just how deficient HMM’s production of financial documents truly is. These witnesses, all senior executives at HQ in Korea or high-level managers with direct reporting to Korean leadership, testified HMM tracked D&D as revenue,¹⁴

¹⁰ *Id.*

¹¹ SEA is addressing Rog No. 7 due to HMM’s recent supplemental response; however, HMM D&D financial documents are also responsive to RFP Nos. 11, 23, and 24.

¹² Exhibit B at 4-5 (HMM’s Supplemental Response to SEA Rog 7).

¹³ For example, deposition testimony revealed that HMM systematically calculated “profit per container” for both house and CNT door moves, and that information was used to make decisions about inland trucking and D&D charges impacting profits per container. *See* Min Kim Dep. Tr. 137:19-138:15, 145:9-146:8. HMM’s “profit per bill of lading” was systematically tracked in a specific GAUS/COMPASS module that was specifically only accessible by HMM HQ. *See* Sungchan (Allan) Park Dep. Tr. 149:8-150:16. Data from that module has not been produced.

¹⁴ Shin Kim Dep. Tr. at 54:19-60:13 (explaining that he received a weekly report from three direct report teams in Korea, a monthly report from HMM America teams, regarding D&D revenue and collection information); Seungho Oh Dep. Tr. 17:8-20:1 (explaining the Revenue Creation Part D&D revenue tracking), 38:6-39:7 (explaining that HMM HQ had real time access to data on D&D revenue and collections).

set annual revenue targets for D&D collections,¹⁵ and escalated D&D revenue information up the chain to the most senior levels of the company, including the President and CEO.¹⁶ Testimony further established that HMM treated D&D as a significant revenue stream,¹⁷ that HMM sought to increase D&D rates to increase revenue, and directed personnel to collect “100%” of invoiced D&D charges.¹⁸ These are not mid-level employees speculating about what might exist at headquarters—these are managers and executives, testifying under oath about policies, positions and reports they personally prepared, reviewed, and relied upon in managing HMM’s D&D operations. Yet HMM has not produced these documents. These documents exist, HMM knows they exist, and HMM chose not to produce them. HMM must be compelled to produce responsive documents.

2. Failure to Adequately Identify Custodians, Including Container Service Supporting Team and “Revenue Creation Part.”

Multiple witnesses testified that the “Container Service Supporting Team” at HMM headquarters in Korea was responsible for creating D&D policies, drafting and setting tariff rules and rates, tracking D&D charges, establishing revenue and collection targets, and reporting progress to senior management and the CEO.¹⁹ Within that team, witnesses specifically identified

¹⁵ Seungho Oh Dep. Tr. at 101:2-8 (explaining that HMM HQ set D&D targets and projected revenue growth), 110:7-19 (the Container Service Supporting Team provided DCSC with D&D collection targets); Shin Kim Dep. Tr. 37:8-40:18 (describing annual business plans supplied by regional offices, compiled by him and his team at HQ, sent for approval to the CEO, and including revenue targets for D&D).

¹⁶ Shin Kim Dep. Tr. 62:7-15 (explaining that he reported to Jinki Park and when necessary up to the corporate CEO), 164:10-165:16 (explaining that he had Samsung specific conversations with Kyung Bae Kim related to Samsung D&D).

¹⁷ Seungho Oh Dep. Tr. 18:1-19:1 (testifying that D&D were categorized as “other revenue” and constituted a significant revenue source for HMM).

¹⁸ Junseok Choi Dep. Tr. 55:17-56:20 (testifying that he personally reported D&D revenue information to Jay Y. Lee, the CEO of HMM America, and that Lee instructed him to collect “one hundred percent” of the D&D amounts invoiced to shippers).

¹⁹ Shin Kim Dep. Tr. 126:19-128:3 (describing the Container Service Supporting Team as the team in Korea that decide on D&D rates, rules, and methods over how to impose those rates and

a sub-unit called the “Revenue Creation Part,” responsible for setting D&D charges and developing strategies to increase D&D collections and revenue.²⁰

Despite the obvious and central relevance of discovery from the actual D&D policy and decision makers, metadata reveals that HMM identified no custodians from this group, disclosed no witnesses from this group, and produced virtually no documents to or from its members. It is not likely that SEA could have even discovered that these groups existed from the documents produced by HMM; SEA could not identify key witnesses to depose; and SEA does not have the relevant documents to use in depositions of such witnesses.²¹

This stands in stark contrast to consistent testimony of HMM witnesses that all D&D policy, monitoring, and decision-making authority was in Korea. HMM’s production reflects other significant gaps in its custodian selection, including incomplete production from employees identified as deponents and the failure to produce documents from custodians that SEA has asked for and HMM has agreed to search.²² HMM’s discovery failures in this regard go back as far as its obligation to disclose key witnesses in its initial disclosures. We expect that documents of the HMM employees that were actually responsible for D&D policy decisions will contain highly relevant information—such as whether HMM meaningfully incorporated the interpretive rule and

develop D&D policies); Seungho Oh Dep. Tr. 39:8-40:14, 64:5-21 (explaining that during his time as head of DCSC, the employees at DCSC did not create policies, they enforced D&D policies set from Korea’s Container Service Supporting Team); Tasha Hammond Dep. Tr. 104:3-105:6 (describing a team in HQ that Seti Min is part of as the team that monitors D&D and circulates policies); Sungchan (Allan) Park Dep. Tr. 50:2-19 (explaining the role of the Container Service Supporting Team in setting up D&D policies and monitoring it).

²⁰ Shin Kim Dep. Tr. 168:17-169:14 (describing the Revenue Creation Part as the sub-team within the Container Service Supporting Team that was involved in “setting tariffs that include what we call surcharges that refer to [D&D] and how to collect them and how to decrease or minimize the outstanding amount”).

²¹ Metadata shows that only two individuals from HMM’s headquarters in Korea were custodians of documents produced: Sangreal Baek and Wangmin (Billy) Lee.

²² See Exhibit C at 2.

incentive principle in HMM's D&D policies and practices impacting SEA or if HMM sought to maximize D&D as a source of additional revenue.²³ HMM must be compelled to adequately search the documents of key custodians, including but not limited to those listed in Exhibit C, in order to then produce their relevant documents.

3. Failure to Produce Other Key Categories of Responsive Documents.

Deposition testimony reveals that HMM has failed to produce documents in a multitude of other key categories (summarized below):

- a. Reports on Underlying Cause of Delay²⁴: Deposition testimony revealed the existence of detailed internal reports that HMM regularly generated to track container delays, assess fault, and manage D&D revenue²⁵—yet HMM's document production fails to reflect the volume and scope of these materials.²⁶ The testimony confirms that identified reports were used to determine or allocate fault and to decide whether delays were attributable to HMM or to shippers—precisely the information at the heart of SEA's claims under the Shipping Act. Deposition testimony also confirmed the existence of specific reports and audits flagging inaccurate and excessive invoices.²⁷ Yet SEA has only identified one example in the production of such checks on invoice accuracy.
- b. Operational Contracts²⁸: HMM maintained contracts with multiple rail carriers²⁹ and IEPs³⁰ that were essential to HMM's inland transportation operations and directly relevant

²³ See, e.g., *Samsung Electronics Am. v. SM Line Corp.*, Dkt. No. 23-01, 2025 WL 2231637, at *44-45 (ALJ May 28, 2025 (Initial Decision finding that evidence that D&D policy was used “as a tool to maximize profits” did not comply with the incentive principle and constituted an unreasonable practice)).

²⁴ See Exhibit B at 1-3 (SEA Rogs 2 and 3 and RFPs 3, 4, and 18 and HMM's responses thereto).

²⁵ See e.g., Seungho Oh Dep. Tr. 122:10-124:2 (describing weekly meetings with HMM America related to D&D collections, revenue, and uncollected amounts, and a separate meeting/report related to rail storage idling reasons), 133:17-136:19 (describing a report HMM generated to track reasons for rail storage fee, such as Exhibit 6 of the Seungho Oh Dep.).

²⁶ SEA has only been able to identify 56 Door Idling List excel documents and 70 Door Idling Report excel documents in HMM's production, and even those are incomplete. HMM has only produced 53 of these Weekly WebEx Reports, some of which are repeats or duplicates.

²⁷ Sungchan (Allan) Park Dep Tr. 86:15-87:18 (confirming that this was a check conducted at his direction to verify that compulsory waiver days were being properly accounted for in D&D invoice calculations), 89:1-11 (stating that checks were run regularly by D&D team members).

²⁸ See Exhibit B at 3-4 (SEA RFPs 6, 7, 8, and 9 and HMM's responses thereto).

²⁹ Min Kim, Intermodal Network Manager, testified extensively regarding the Intermodal Team's responsibility for and retention of railroad service contracts. Min Kim Dep. Tr. 105:19-120:20.

³⁰ Tina Shin, Equipment 1 Supervisor, testified that contracts with IEPs—including DCLI, SACP, CCM, and TRAC—were stored in a Teams folder. Tina Shin Dep. Tr. 54:12-55:1.

to the charges at issue. These contracts established the terms and allocation of costs and responsibilities, the supply of chassis to rail terminals, and the basis for any rail storage charges that HMM subsequently passed on to SEA. These contracts and rates are fundamental to understanding the cost structure underlying the charges HMM assessed to SEA and the operational responsibilities HMM undertook when it offered door delivery service. Their absence from HMM's production is inexplicable.

c. Source Documents³¹: HMM was obligated to produce all "AP Batches"³² relating to rail storage for SEA shipments, all rail invoices sent by Lotte to HMM, all indirect terminal statements and related payments,³³ and all communications and reports from IEPs (DCLI, SACP, CCM, and TRAC) concerning chassis availability, container status, or operational issues. Testimony confirms that the invoices and source documents exist, HMM received them, and HMM relied upon them to calculate charges it subsequently passed through to SEA. Yet HMM has produced only 15 rail invoices and minimal communications from the IEPs that provided regular reports to HMM.

d. Training Materials, Written Policies, SOPs, and Guidelines³⁴: HMM failed to produce training materials, compliance documents, and written policies governing its D&D practices. This is particularly significant given that the existence and accessibility of such policies is expressly identified as a factor in determining the reasonableness of D&D charges under 46 C.F.R. § 545.5(d). Multiple witnesses testified to extensive training programs and materials employees used relating to intermodal transportation and D&D.³⁵ Testimony further revealed the existence of a policy/practices manual, the "DCSC Manual," which was described as essential to HMM's customer service center's ability to perform its work.³⁶ These and other specifically identified training and policy materials have not been produced.³⁷

³¹ See Exhibit B at 1-3 (SEA Rogs 2 and 3 and RFPs 3, 4, and 18 and HMM's responses thereto).

³² Tasha Hammond Dep. Tr. 86:4-24 ("When storage is input into our system to pay, it's given a batch number and it has a cover pay. And they make, like a – like a packet of the invoice, the backup documentation, and the batch cover page").

³³ Tasha Hammond Dep. Tr. 37:22-40:4 (describing that there were separate demurrage coordinators who strictly handled paying port terminal storage invoices sent by port terminals to HMM, explaining that "HMM is billed storage by the facilities, and they receive – in the storage invoices, they audit them, and then they process payment).

³⁴ See Exhibit B, at 6-7 (SEA RFPs 13, 14, and 15 and HMM's responses thereto).

³⁵ Tasha Hammond Dep. Tr. 21:6-25:7 (describing the lengthy training she received and gave at HMM); Dianne Gunn Dep. Tr. 117:16-118:9 (describing the "pretty extensive training program" at HMM); Seungho Oh Dep. Tr. 78:1-4 (testifying regarding training materials called "Shipping 101" which taught "from A through Z on shipping"). HMM has produced only a single iteration of five parts of "Shipping 101" showing a 2021 last-updated date, and COMPASS training materials from 2018.

³⁶ Seungho Oh Dep. Tr. 95:4-10.

³⁷ See, e.g., Susan DiBartolomeo Dep. Tr. 97:7-98:1, 99:16-100:3 (testifying to the existence of a regularly updated Rail Manual), 147:2-20 (testifying regarding a document sent around related to the enactment of OSRA 2022); Shin Kim Dep. Tr. 140:5-16 (describing that "important updates

e. The Portal: Certain witnesses testified that “The Portal” is an internal HMM system linked through COMPASS that is used “for documents that need an approval.”³⁸ Testimony confirmed that all historical refunds and their approval lines were saved on The Portal, including electronic forms that replaced a prior paper-based approval process.³⁹ Min Kim testified that historical rail contracts and approvals are maintained on The Portal.⁴⁰ SEA requests that HMM be compelled to produce all responsive documents from this system, and any other system that HMM has not yet searched.

f. Local Drives: SEA’s Discovery Requests expressly encompassed relevant documents maintained on custodians’ local drives.⁴¹ Testimony of HMM witnesses indicates that employees maintained relevant files locally, including files concerning chassis and IEP invoices,⁴² equipment related training materials,⁴³ and D&D revenue reporting,⁴⁴ demonstrating that HMM employees routinely stored relevant files locally. To the extent HMM has not searched and produced documents from relevant custodians’ local drives, it must do so.

III. MEET AND CONFER CERTIFICATION

SEA’s concerns with HMM’s discovery were discussed during the January 29, 2026 conference. The Presiding Officer indicated then that if cooperative resolution was not reached, SEA should file a motion to compel. Since that time, SEA’s attempts to resolve HMM’s increasingly deficient discovery responses have not been successful. SEA’s detailed March 9, 2026 letter went unanswered for 24 days, and HMM’s response on April 2, 2026 (and a small production on April 3, 2026) did not remotely resolve the deficiencies. Moreover, as SEA explained in its

or changes” like OSRA 2022 “are supposed to be shared within the container division” and that he recalled “a report in an email – in writing rather, and the email contains that written information was circulated within the container business unit”); Sungchan (Allan) Park Dep. Tr. 95:7-22 (testifying he received an online training on OSRA 2022 after its enactment with the D&D teams).

³⁸ Tasha Hammond Dep. Tr. 101:11-14.

³⁹ Tasha Hammond Dep. Tr. 101:6-21, 107:6-9.

⁴⁰ Min Kim Dep. Tr. 120:10-20.

⁴¹ SEA’s First Set of Discovery Requests at 9.

⁴² Tina Shin Dep. Tr. 28:2-29:21 (describing how she would review chassis invoices, and that the practice was to save these invoices locally on her computer).

⁴³ Tina Shin Dep. Tr. 68:25-69:14 (describing that the training materials she used to train employees would be “inside my saved file” and that she did not provide access to these files for this litigation).

⁴⁴ Junseok Choi Dep. Tr. 53:20-54:20 (describing that DCSC reported D&D revenue on a biweekly or monthly basis, and that the reports were in writing in his files and that the service coordination team “must have – they saved this”).

further letter of April 10, 2026, the intervening depositions showed significantly more discovery deficiencies, and at that time SEA was preparing a motion to compel pursuant to the guidance at the January 29, 2026 conference. Since that time HMM has not further supplemented its production or provided any further substantive response.

IV. CONCLUSION

For the foregoing reasons, SEA respectfully requests that the Presiding Officer grant SEA's Motion to Compel and enter an order requiring HMM to comply with its discovery obligations by:

1. Ordering HMM to produce all responsive documents, including without limitation, the documents identified herein and in Exhibit C;
2. Ordering HMM to promptly search for and produce responsive documents from the custodians identified by SEA in Exhibit C;
3. Grant such other and further relief as the Presiding Officer deems just and proper.

Dated: April 24, 2026

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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